

26PR00366 Matter of Robert C. Engemoen, Jr. Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-17

Motion: Petition for Appointment of Successor Trustee

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Matter of Robert C. Engemoen, Jr. Trust

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Petition for Appointment of Successor Trustee

Tentative Ruling: This matter is CONTINUED to October 30, 2026 at 9:30 a.m. in Department 63, for the reasons set forth below.

All trust beneficiaries are entitled to notice of this petition. California Probate Code §17203(a)(2). Also see California Probate Code (Prob C) §24(c). Upon Carla Johnson's death the remainder beneficiaries are Thelma F. Engemoen's (Thelma) living issue. Trust Article Fifth section B. There is no notice to Thelma's issue and the petition does not indicate Thelma died without issue. The petitioner is directed to file and serve, at least seven (7) court days in advance of the continued hearing, a verified supplement, addressing whether Thelma died leaving issue. If Thelma died leaving issue, the petitioner is directed to timely serve code compliant notice of the continued hearing to said issue and file proof(s) of service.

Also, the trust waives bond for any trustee named in the trust instrument. Trust, Art. Thirteenth section B. The petitioner is not named as a successor trustee in the trust instrument, so bond must be required pursuant to Prob C §15602(a)(3). The Court will require bond in the amount of the overall value of the trust res. The petitioner is directed to file and serve, at least seven (7) court days in advance of the continued hearing, a verified supplement addressing this issue, so that an appropriate bond can be set.